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Provision of November 16, 2023

Register of provisions

n. 528 of November 16, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Attorney
Guido Scorza, and Dr. Agostino Ghiglia, members, and
Dr. Claudio Filippi, general secretary;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter: "Regulation");

HAVING REGARD to the Code regarding the protection
of personal data, as per Legislative Decree No. 196 of June 30, 2003, and subsequent amendments
(hereinafter: "Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers delegated to the Guarantor for the
protection of personal data (hereinafter: "Regulation 1/2019");

HAVING EXAMINED the complaint submitted by Mr. XX
regarding an alleged unlawful processing of personal data
concerning him, carried out by Attorney XX;
Having examined the information provided by the parties;
Having reviewed the remaining documentation on file;
Having considered the observations of the Office, formulated by
the general secretary pursuant to Article 15 of
the Guarantor's Regulation No. 1/2000 on the organization
and functioning of the Office of the Guarantor for the
protection of personal data;
Reporting by Dr. Agostino Ghiglia;

1. The case and the investigative activity of the Guarantor
Mr. XX submitted a complaint to this Authority regarding an
alleged unlawful processing of his personal data by Attorney
XX. In particular, Mr. XX reported that "on
December 5, 2018, an email containing sensitive
judicial documents was sent to the certified company email
of which I am a partner along with my brother (...), to which
employees also have access. In this case, the
certified email was received by my brother (...) who
forwarded it to me but was not aware of the latest developments in my
private matter concerning the aftermath of my divorce from my ex-spouse."

The Authority invited Attorney XX to provide any useful
elements regarding the claims made in the complaint,

requesting in particular a copy of the email in question and any other deductions deemed useful for the assessment of the complaint. Attorney XX provided the requested feedback, sending a copy of the certified email - with which a judicial act was notified, pursuant to Law No. 53 of 1994, to the certified company email address of the complainant - and stating, as far as relevant here, that: "the sending of the certified email (...) occurred within the framework of a proceeding under Article 702 bis of the Civil Procedure Code with a request for the issuance of a conservatory seizure promoted by (...) my client and ex-spouse of XX to obtain the balance of what is owed to her following the sale of the marital home (...) as agreed by the spouses during the separation." (...) After extrajudicial requests for half of the proceeds (...) the undersigned initiated the action mentioned. By provision dated December 3, 2018, the Court of Genoa granted the seizure *inaudita altera parte* (...) The communication to Mr. XX was made for reasons of procedural economy and cost and also to avoid that (while waiting for the notification to be completed by a judicial officer) his account would be blocked without his knowledge. Finally, it must be considered that Mr. XX's address is at his mother's house (...) where he lives with his son who, in the past, when notifications were made through a Judicial Officer, had to receive them (...). All the above reasons led the undersigned attorney to carry out the notification via certified email. (...) If one looks at the header of the certified email, it is clear that the communication was addressed to the attention of Mr. XX. Therefore, a confidential communication that, if applicable, was illegally processed by whoever accessed the certified email. Not to mention that, in any case, Mr. XX has not provided proof that any third parties opened the certified email before him." In conclusion, the attorney believed that there had been no unlawful processing. Since the justifications provided did not appear to legitimize the conduct, the Authority communicated to Attorney XX in his capacity as the data controller and to Mr. XX, in his capacity as the complainant, the initiation of the procedure for the possible adoption - pursuant to Articles 77 et seq. of the Regulation - of the measures referred to in Articles 58, paragraph 2 and 83 of the Regulation itself, Article 166 of the Code, and Articles 12 et seq. of Regulation 1/2019 of the Guarantor, for the presumed violation of Articles 5 and 6 of the Regulation. Attorney XX submitted defensive notes, confirming what had been previously noted and arguing that: "it cannot certainly be disputed that the sending occurred and that it was sent to the certified email address of Mr. XX's company. What the undersigned attorney wants to once again draw the Guarantor's attention to is: a) the manner in which the data was processed [with regard to the wording "To the attention of Mr. XX" present in the certified email in question]; b) the subjects

who could access the certified email; c) the recurrence of some of the conditions listed in Article 6, paragraph 1 GDPR; d) the lack of proof, on the part of Mr. XX, of "immediate injury from the processing of data." In particular, regarding the manner in which the communication in question occurred, the lawyer represented that: "in any case, what appeared to the employees was the screen with the aforementioned wording and five files which, although named, did not leave any doubt about the content, unless they were opened. (...) it was personal because it was brought to the attention of Mr. XX but the content was difficult to identify." As for the subjects who could access it, the lawyer produced the registration of the company to which the PEC in question was sent, from which it appeared that the employees of the company were two and the partners four (Mr. XX, his brother, his father, and his mother) and that "Therefore, except for the employees (...) those who had access to the company PEC were primarily individuals who are normally aware of Mr. XX's personal matters." Regarding the alleged occurrence of some of the conditions of lawfulness of processing under Article 6 of the Regulation, the party argues that the lawyer's processing would be legitimized by the necessity to safeguard the interests of the client in the aforementioned judgment, thus dealing with "aspects that are relevant for the application of letters b), c), and f)." Furthermore, it was stated that "the haste caused the undersigned lawyer to send the PEC to the wrong address. But this was done in fulfillment of a procedural obligation, namely to notify the seizure to the seized party. (...) This was also done to safeguard the economic interests and generally to pursue the legitimate interest of the [client], which had become 'vital' when contrasted with Mr. XX's interest in privacy." Finally, the lawyer represented that no damage would have been produced in the personal and patrimonial sphere of Mr. XX, requesting to be heard personally.

On May 4, 2023, the hearing of the party took place, via telematics, during which it was represented that Mr. XX would never have submitted any compensation request regarding the processing of personal data in question, concluding by asking to proceed with the archiving of the administrative procedure and, in the alternative, without recognizing the validity of Mr. XX's objections, the application of a sanction in the least possible amount.

2. Applicable regulations and outcome of the investigative activity.

Pursuant to Article 4, paragraph 1, no. 1), of the Regulation, personal data is defined as "any information relating to an identified or identifiable natural person." According to number 2) of the same article, processing is defined as "any operation or set of operations, performed with or without the aid of automated processes and applied to personal data or sets of personal data, such as collection, recording, organization, structuring, storage, adaptation or alteration, extraction, consultation, use, communication by transmission, dissemination or any other form of making available, comparison or interconnection, restriction, erasure or destruction."

Therefore, the communication of information relating to the complainant constitutes processing of personal data. From the documents of the preliminary investigation and those subsequently acquired as a result of this procedure, it is confirmed that lawyer XX transmitted personal data relating to the interested party (the complainant) to the PEC address of the company, of which the complainant is a partner, in the absence of an appropriate legal basis (Article 6 of the Regulation) and the principle of "data minimization" (Article 5, paragraph 1, letter c) GDPR).

The defense of lawyer XX is based on the preliminary assumption that the personal nature of the data in question had faded, as "it was personal because it was brought to the attention of Mr. XX but the content was difficult to identify" (see cited defensive memoranda). In this regard, however, it is established that there was processing of "personal" data relating to the complainant by the lawyer, who recognized and documented the communication to the company email box, accessible also by subjects other than the complainant, of judicial acts related to him. The subject of the PEC in question (titled: "notification pursuant to law 53/1994") was, moreover, associated with the text of the same, containing the name of the interested party (by the wording: "to the attention of Mr. XX").

Regarding the alleged occurrence of the conditions of Article 6, paragraph 1, letters c) and f), of the Regulation, the party did not provide any evidence regarding the existence of the necessity to fulfill a

legal obligation in relation to the procedural obligation to notify the seizure to the interested party, rather demonstrating the opposite and representing, during the investigation, that he knew the address of Mr. XX, at which he had previously had the opportunity to “execute notifications through a judicial officer” and that the judicial act “could have been notified the following day at the residence and/or domicile of Mr. XX” (see response and cited defensive memoranda).

Moreover, the necessity of the processing for the safeguarding of the vital (albeit patrimonial) interests of the lawyer's client was not demonstrated, considering that, as reported during the preliminary investigation, once the conservatory seizure on the complainant's bank account was ordered by the Court *inaudita altera parte*, the lawyer immediately notified the seizing company to protect the interests of her client, thus not finding any...

necessity or urgency to proceed as deemed appropriate.

Finally, the lack of evidence on the part of Mr. XX of having suffered harm from the processing of data is not relevant, nor is the circumstance that he has never submitted, as represented by lawyer XX during the hearing, any compensation request. This does not constitute, in any way, a condition for the admissibility of the exercise of the corrective and sanctioning powers of the Authority, nor a typical element of the administrative offenses contested.

3. Conclusions.

In light of the above, taking into account the statements made by the data controller during the investigation - and considering that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor" - the elements provided by the data controller in the defense briefs and during the hearing do not allow for overcoming the objections notified by the Office with the initiation of the proceeding, nor do any of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

For these reasons, the illegality of the processing of personal data underlying the contested communication, carried out by lawyer XX in violation of Articles 5, paragraph 1, letter c) and 6 of the Regulation, is noted.

Considering that the conduct has exhausted its effects, the prerequisites for the adoption of the corrective measures referred to in Article 58, paragraph 2, of the Regulation do not exist.

4. Adoption of the injunction order for the application of the administrative pecuniary sanction (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The established offense is subject to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, of the Regulation.

It should be noted that the Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" (Article 16, paragraph 1, of the Guarantor Regulation No. 1/2019).

The determination of the sanction to be imposed, based on the circumstances of each individual case, must be made taking into account the principles of effectiveness, proportionality, and deterrence (Article 83, paragraph 1, of the Regulation), based on the criteria set out in paragraph 2 of the same article, in relation to which it is observed that:

- the Authority became aware of the event following a complaint from the interested party (Article 83, paragraph 2, letter h) of the Regulation);
- the processing of data carried out by the lawyer concerned judicial acts related to the interested party (Article 83, paragraph 2, letter g) of the Regulation);
- from the perspective concerning the subjective element, no intentional attitude on the part of the data controller emerges (Article 83, paragraph 2, letter b) of the Regulation);
- the party has demonstrated a good degree of cooperation with the Authority (Article 83, paragraph 2, letter f) of the Regulation);

- there are no previous measures from the Guarantor against the party for relevant violations (Article 83, paragraph 2, letter e) of the Regulation);
- the number of persons authorized to access the corporate certified email box was small (Article 83, paragraph 2, letter k) of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, in the amount of €500.00 (five hundred) for the established offense, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportional, and deterrent. Finally, it is noted that the prerequisites referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR declares the illegality of the processing of personal data carried out by lawyer XX for the violation of Articles 5, paragraph 1, letter c) and 6 of the Regulation.

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the GDPR, lawyer XX to pay the sum of €500.00 (five hundred) as an administrative pecuniary sanction for the offenses indicated in this provision, noting that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days from the notification of this act, of an amount equal to half of the imposed sanction.

ORDERS

lawyer XX, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €500.00 (five hundred) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts pursuant to Article 27 of Law No. 689/1981.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of 2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 16, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi